

02:00 PM **LINE 5**

24-CLJ-01117

WELLS FARGO BANK, N.A. VS. HYUN CHO

WELLS FARGO BANK, N.A.
HYUN CHO

HARLAN M. REESE
DENNIS SMITH/PHILIP GREEN

Defense Motion to be Relieved as Counsel

TENTATIVE RULING:

The unopposed motion of Philip Green to be relieved as counsel of record for defendant Huyn Cho is denied without prejudice. Plaintiff has not offered sufficient proof that the moving papers were served in compliance with California Rules of Court, rule 3.1362(d). The proof of service only reflects service of the Notice of Motion. There is no proof that the Green declaration and the proposed order were served on plaintiff and defendant.

With respect to the Notice of Hearing, the proof of service indicates it was served on defendant on February 24, 2026, but it does not say how the service was accomplished. Defendant's mailing address is provided, but it does not state all the information required for proof of mail service under Code of Civil Procedure, section 1013a. Similarly, the proof of service indicates plaintiff was served electronically through the California Electronic Case Filing System. Neither the declarant nor the plaintiff's electronic service address is stated as required by Code of Civil Procedure, section 1013b.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendant's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

02:00 PM **LINE 6**

25-CIV-03556

DOMINIC HIGBEE-GONSALVES VS. ISHAR INVESTMENTS, INC.et al.

DOMINIC HIGBEE-GONSALVES
ISHAR INVESTMENTS, INC.

IRINA BAGHDASARYAN
BRENDAN SAPIEN

Motion to Compel Deposition of Defendant's Person Most Knowledgeable

TENTATIVE RULING:

Plaintiff Dominic Higbee-Gonsalves' motion to compel PMK deposition is **GRANTED**. Plaintiff's request for sanctions against defendant Ishar Investments, Inc., and its attorney of record, O'Hagan Meyer LLP, is also **GRANTED**.

A. Background

On August 1, 2025, plaintiff served defendant Ishar Investments, Inc., with a Notice of PMK Deposition, set for October 31, 2025. (Begakis Decl., ¶ 2, exh. A.) On October 21, 2025, plaintiff's counsel emailed defendant's counsel to confirm that the PMK deposition would go forward as noticed. (Id., ¶ 3, exh. B.) Plaintiff's email included an offer that the deposition could be moved to a date within 30 days of the scheduled date, if requested within three days. (*Ibid.*)

On October 29, 2025, plaintiff's counsel followed up on the courtesy email reminder and Defense counsel responding by stating that his client was unavailable and that he would provide potential alternative dates shortly. (Begakis Decl., ¶ 4, exh. C.) Plaintiff's counsel responded by stating that no timely objections had been made and that if new dates were not sent by the next day, plaintiff would move forward with the deposition and take a non-appearance. (*Ibid.*)

On October 30, 2025, at 5:00 p.m., plaintiff's counsel emailed defendant's counsel following up on the request for deposition dates. (Begakis Decl., ¶ 4, exh. C.) On October 31, 2025, defendant's counsel responded: "I will be getting you deposition dates by next week." (*Ibid.*) Plaintiff proceeded with the deposition and took a non-appearance. (*Id.*, exh. D.)

On December 5, 2025, defendant sent a formal meet and confer letter to plaintiff regarding defendant's failure to appear and failure to provide firm dates for the PMK deposition. (*Id.*, ¶ 6, exh. E.)

On December 19, 2025, plaintiff filed a motion to compel the PMK deposition. (Liu Decl., ¶ 2.) The motion was ordered off the calendar so that the parties could engage in an Informal Discovery Conference on the matter. (*Ibid.*) At the IDC hearing on February 3, 2026, the Commissioner recommended that the PMK deposition take place within four weeks and authorized plaintiff to file a motion to compel. (*Id.*, ¶ 3, exh. G.)
